



Young Anthropology

Undergraduate Journal of Anthropology
at the University of Toronto Mississauga

Title: “The Indian Act and Racialized Indigenous Rights: the Wet’suwet’en pipeline protest.”

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Source: *Young Anthropology* – Undergraduate Student Journal of Anthropology
Vol. 4, pp. 44-48 (Fall 2022).

Published by: The Department of Anthropology, University of Toronto



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The Indian Act and Racialized Indigenous Rights: the Wet'suwet'en pipeline protest.

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Abstract

This article explores the relations between the Government of Canada and the Indigenous people in a capitalist context. By applying the expropriation-exploitation model proposed by Nancy Fraser (2016), the article shows how the government uses legislation as a capitalist management tool from colonial times to the present day. Specifically, the article focuses on a 2020 protest against a natural gas pipeline project on Wet'suwet'en territories in British Columbia and the controversial role of the Indian Act (1985) plays in a capitalist economy. The article begins with a review of the Act and its implications in the context of the pipeline protest. By drawing from Coulthard's interpretation of Hegelian "recognition" (2017) and "racialized capitalism" by Fraser (2016), the article reveals that by establishing an Indigenous status, the Act ensures Indigenous people's participation in a capitalist economy. Finally, the essay highlights a core value of Indigenous culture overlooked by the Marxism model revealed by Peter Kulchyski (2019). While Marxists believe workers' *time* is exploited, the Indigenous struggles are around their *land*. Thus the government's proposals violate core values of Indigenous culture by proposing to compensate the people with cultural recognition and economic development plans in exchange for their land and natural resources.

Keywords: The Indian Act, Hegelian recognition, racialized capitalism, Indigenous, pipeline

1. Introduction

In January 2020, a protest against a natural gas pipeline project, the proposed route of which would travel through Wet'suwet'en territory in British Columbia (BC), gained national attention in Canada (Tumilty 2020). Even though the elected First Nations band councils and the province had approved the project, the Wet'suwet'en hereditary chiefs rejected, arguing it was a violation of their land rights to the unceded territory. The chiefs asserted that the oil company should have consulted with the hereditary chiefs, not the councils (Cousins 2020). They argued that the chiefs had been the clans' traditional leaders before the imposition of the Revised Statutes of Canada 1985 Indian Act (1985, c. I-6), whereas the councils' rights and authority came from the Act. Following this argument, the

company should have acquired consent from the chiefs before they entered Wet'suwet'en territories. Despite these objections from hereditary Chiefs, the Supreme Court of Canada ruled favourably towards the natural gas company, and the protest was deemed illegal (Coastal GasLink Pipeline Ltd. v. Huson 2019). This incident sheds light on Indigenous rights in Canada and the controversial role the Indian Act plays in a capitalist economy.

This article explores the relations between the Government of Canada and the Indigenous people in a capitalist context. By applying the racialized expropriation-exploitation model proposed by Nancy Fraser (2016), I demonstrate that the Canadian government has been using legislation as a capitalist management tool from colonial times to the present day. I start with a review of the Act and its implications in the context of the pipeline

protest, followed by an analysis of Indigenous status recognition drawing from Coulthard's interpretation of Hegelian "recognition" (2017) and "racialized capitalism" by Fraser (2016). Finally, I highlight a core value of Indigenous culture by comparing the oppressed working class in Marxism to the Indigenous struggles discussed by Kulchyski (2019).

2. The Conflict

The Government of Canada website states that the construction of infrastructure on reserve lands must comply with the Indian Act (Government of Canada 2021). Thus, in the case of the gas pipeline, First Nation representatives needed to give their approval for the project for it to be authorized legally. However, disagreement arose over whether the hereditary chiefs or the band councils represented the bands and thus over who had the authority to approve the controversial project. The chiefs are the clans' traditional leaders who inherit the title and the responsibilities for their community's traditions and cultural values. On the other hand, the councils' members are elected by the First Nation members every two years (Government of Canada 2021). From the government's perspective, the councils are legally recognized and, thus, hold legal accountability for the bands. However, in this case, the councils failed to represent their constituencies as the Wet'suwet'en overwhelmingly rejected the approved project (Tumilty 2020).

While the councils might have considered the economic benefits from the compensation of the pipeline project (Ministry of Indigenous Relations and Reconciliation 2019), their people were more concerned about the implications of ceding their land rights (Cousins 2020), as well as the environmental impact of the project (Lau 2022).

The primary concern with regards to transporting liquefied natural gas is the pollution a potential leakage of chemicals can cause (Arent et al. 2015). Those hazardous chemicals can cause air and water pollution in the reserves. Moreover, even though the gas supply goes to both factories and households, it cuts production costs more for the factories than for individual families. Thus, the factories in BC will benefit from the project at the expense of potential pollution of the living environment of the Wet'suwet'en.

3. The Implications of the Indian Act From a Capitalist Perspective

The Indian Act gave the Department of Indian Affairs the power to manage Indigenous territories and resources, determine Indigenous status, and intervene in internal band issues. This is problematic because it places state management over Indigenous governance, which is evident in, for example, the Indigenous status recognition. The underlying assumption that Indigenous status depends on the recognition of the Act is problematic, because building on Fraser's "racialized capitalism" (2016), one can argue that when Indigenous rights are recognized outside of constitutional rights, it marginalizes and racializes Indigenous peoples.

Fraser (2016, 172) links the racialization process to racialized capitalism. Racialized capitalism happens when the expropriated subjects are marginalized and racialized to reinforce their inferior status, making them available for exploitation. Often, they carry a racialized stigma when entering exploitation, which makes them more vulnerable to unfair exchange. When moving into the exploitation stage, the relations between the subject and the capitalist become more contractual. However, the transition from expropriation to exploitation is not always peaceful, as forceful enfranchisement and conscriptions can happen.

As stated by Fraser, expropriation refers to the dispossession of "dependent" labour who lose control of their means of production. In contrast, exploitation refers to the unequal exchange between the "independent" but property-less labour and a capitalist (Fraser 2016, 166). A difference between expropriation and exploitation is whether the legislation recognizes the subject's legal and political identity. During expropriation, removing means of production can be done by confiscating land and restricting access to natural resources. The removal, in turn, makes the subject exploitable as they are forced into the labour market.

All those characteristics are evident in the State-Indigenous relations in Canada since colonial times, exemplified by land surrender treaties during the American War of Independence (1775) and the implementation of legislated cultural assimilation (1820-1927). At the present time, the Indian Act continues to challenge traditional Indigenous governance by encouraging nepotism in the elections of councils as most of the elected members are from larger clans (Poucette 2018, 505). This

results in the large clans having the deciding vote in clan matters (Poucette 2018, 505) and consequently reinforces the political power of the current council members from those clans, which can lead to upholding the political status quo in State–Indigenous relations (Poucette 2018, 500). In the pipeline case, the hereditary chiefs' authority was dismissed and the Wet'suwet'en were forced to accept an unwanted infrastructure in their unceded territories. From the Canadian government's perspective, putting economic growth before hereditary chiefs' authority secures its economic basis, which in turn, supports the authority of the federal government and the councils. This ties back to Fraser's prediction on how politics and economy reinforce each other (Fraser 2016, 171).

4. State–Indigenous Relations From Hegelian and Marxism Perspectives

Imagine this: Indigenous people publish a legislation that recognizes Canadians as being Canadian. I believe this would be a bizarre scenario to most of our readers. This reveals a core characteristic of status recognition: it is not mutual.

Drawing from Hegel's insight on recognition, Coulthard (2017, 109) argues that this nonmutual recognition reveals the colonial undertone of the Indian Act as only slaves need to be set free by their master. Coulthard's view echoes Fraser's "racialized capitalism" analysis. Indigenous people are merely passive recipients of "white liberty and white justice" by accepting status recognition exemplified by most political grievances and discussions centred around reconciliation (Coulthard 2017, 31). Focusing on reconciliation understates the violent history behind land dispossession and its long-term impacts on Indigenous peoples (Coulthard 2017, 117). Moving the dialogue away from reconciliation will elicit open discussion on the proper acknowledgement of Indigenous rights, which will, in turn, topple the colonial logic underlying the current policymaking (Daigle 2019).

In contrast to Fraser's "racialized capitalism" model, Kulchyski emphasizes that one distinction between Marxism and Indigenous studies is how to understand the source of oppression. Kulchyski (2019, 88) highlighted that while Marxists believe workers' *time* is exploited, the Indigenous struggles are around their *land*. Land rights and Indigenous self-determination are the

essential components of the ongoing discourse around Indigenous sovereignty (Bauder and Mueller 2021).

With this notion in mind, we see that the government's natural gas benefits proposal fails to address the importance of land in the settlements. For example, the government proposes compensating Indigenous people with cultural recognition and economic development plans in exchange for their land and natural resources (Ministry of Indigenous Relations and Reconciliation 2019). Even though state investments might seem attractive during economic stagnation, it poses a dilemma in the Indigenous community as it always requires surrendering undefined Indigenous rights (Kulchyski 2019, 89–90). It forces the people to choose between their heritage (past) and community development (future).

5. Conclusion

In this article, I examined the State–Indigenous relations in Canada through the pipeline case in British Columbia from both Hegelian and Marxism perspectives. I demonstrated that the Canadian government has been using the Indian Act as a capitalist management tool by applying Fraser's "racialized capitalism" model and the colonial undertone of the Act by applying Hegelian "recognition". I also highlighted the Indigenous struggles around their *land* revealed by Kulchyski, which is different from classical Marxism.

Hopefully, the work developed around Indigenous cultures within the intellectual community will slowly make its way to policymakers. I will conclude this essay with the relationships between Indigenous people and their lands encapsulated beautifully by Philip Blake (1977, 7):

We have lived with the land, not tried to conquer of control it or rob it of its riches.

We have not tried to get more and more riches and power, we have not tried to conquer new frontiers, or out do our parents or make sure that every year we are richer than the year before.

We have been satisfied to see our wealth as ourselves and the land we live with. It is our greatest wish to be able to pass on this land to

succeeding generations in the same condition that our fathers have given it to us. We did not try to improve the land and we did not try to destroy it.

That is not our way.

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